

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #5	CCRB Case #: 202201374	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/18/2022 8:20 PM	Location of Incident: § 87(2)(b)	Precinct: 50	18 Mo. SOL 8/18/2023	EO SOL 8/18/2023	
Date/Time CV Reported Sat, 02/19/2022 8:55 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/07/2022 8:55 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Gary Capellan	00339	950154	WARRSEC
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Angel Cruz	04301	938294	044 DET
2. SGT Declan Ludington	04794	953018	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers threatened to arrest § 87(2)(b)	
B. Officers	Abuse: Officers threatened to arrest § 87(2)(b)	
C. Officers	Abuse: Officers threatened to arrest § 87(2)(b)	
D. Officers	Abuse: Officers threatened to arrest § 87(2)(b)	
E. Officers	Abuse: Officers threatened to notify Administration for Children's Services.	
F. Officers	Abuse: Officers threatened § 87(2)(b) with the the damage of § 87(2)(b) property.	
G. Officers	Abuse: Officers entered § 87(2)(b) in the Bronx.	
H. Officers	Force: Officers used physical force against § 87(2)(b)	
I. DT3 Gary Capellan	Abuse: Detective Gary Capellan entered § 87(2)(b) in the Bronx.	

Truncation Case Summary

Search IAs: 9

Created by: Katherine White on 04/13/2022

Remarks Performed a Lexis Nexis search for § 87(2)(b)

Created by: Daniel Giansante on 06/27/2022

Remarks Performed a DOC for NYC search. § 87(2)(b) remains incarcerated at VCBC. Next court date is 7/12/22.

Created by: Daniel Giansante on 06/27/2022

Remarks Performed a OCA search. --OCA still has no attorney listed for § 87(2)(b) criminal case.

Created by: Katherine White on 07/08/2022

Remarks Performed a Lexis Nexis search.

Created by: Katherine White on 07/20/2022

Remarks Performed a Lexis Nexis search for § 87(2)(b) § 87(2)(b) -- Negative results

Created by: Katherine White on 07/20/2022

Remarks Performed a Lexis Nexis search for § 87(2)(b) § 87(2)(b) -- Too many results to narrow down.

Created by: Katherine White on 07/20/2022

Remarks Performed a DOC for NYC search for § 87(2)(b) -- § 87(2)(b) is currently incarcerated at the § 87(2)(b) in the Bronx. -- Book and Case #: § 87(2)(b)

Created by: Katherine White on 07/20/2022

Remarks Performed a DOC for NYC search for Christopher § 87(2)(b) -- § 87(2)(b) is incarcerated at Rikers § 87(2)(b) -- NYSID = § 87(2)(b) Book and Case # § 87(2)(b)

Created by: Katherine White on 07/28/2022

Remarks Performed a BADS search for § 87(2)(b)

Contact complainant/victim IAs: 27

Contact: Comp/Witness § 87(2)(b)

Created by: Katherine White on 03/15/2022

Remarks Called § 87(2)(b) at 12:00 p.m. at § 87(2)(b) (1). Phone rang, went to uncustomized VM, left please call VM.

Contact: Comp/Witness § 87(2)(b)

Created by: Katherine White on 04/13/2022

Remarks Called § 87(2)(b) at 1:53 p.m. at § 87(2)(b) (2). Phone rang, went to uncustomized VM, left "please call" vm re: scheduling interview.

Contact: Comp/Witness § 87(2)(b)

Created by: Katherine White on 04/27/2022

Remarks Called § 87(2)(b) at 2:29 p.m. at § 87(2)(b) (3). § 87(2)(b) scheduled interview for 04/29/22 at 11:00 a.m.

Contact: Comp/Witness § 87(2)(b)

Created by: Katherine White on 04/29/2022

Remarks Called § 87(2)(b) at 11:01 a.m. at § 87(2)(b) Called § 87(2)(b) for interview, but had to disconnect call to address work issue.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 05/09/2022

Remarks Called § 87(2)(b) § 87(2)(b) § 87(2)(b) at 5:54 p.m. at § 87(2)(b). § 87(2)(b) provided BWC waiver for child § 87(2)(b) for incident § 87(2)(b) stated she wants to pursue a lawsuit for that case, scheduled interview for § 87(2)(b) on 05/10/2022 at 12:00 p.m. Explained CCRB jurisdiction, stated CCRB cannot help with lawsuit or retrieving vehicle in § 87(2)(b), explained CCRB investigation process.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 05/31/2022
Remarks Called § 87(2)(b) at 6:24 p.m. at § 87(2)(b) § 87(2)(b) provided BWC consent waiver.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 06/30/2022
Remarks Called § 87(2)(b) at 1:30 p.m. at § 87(2)(b) Phone rang once, went to busy signal, Calabrio did not record this call.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/05/2022
Remarks Called § 87(2)(b) at 2:35 p.m. at § 87(2)(b) § 87(2)(b) scheduled an interview on 07/07/22 at 12:00 p.m.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/07/2022
Remarks Called § 87(2)(b) at 12:00 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM box, mailbox full, could not leave VM.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/07/2022
Remarks § 87(2)(b) called at 12:13 p.m. from § 87(2)(b) Inv. White answered and introduced self; call was disconnected.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/07/2022
Remarks Called § 87(2)(b) at 12:13 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM box, mailbox full, could not leave VM.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/07/2022
Remarks Called § 87(2)(b) at 1:01 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM box, mailbox full, could not leave VM.

Contact: Comp/Witness § 87(2)(b)
Created by: Katherine White on 07/20/2022
Remarks Called § 87(2)(b) at 1:47 p.m. at § 87(2)(b) § 87(2)(b) stated that she does not have § 87(2)(b) § 87(2)(b)'s contact information, but will try to get it from a friend. She also does not have § 87(2)(b) § 87(2)(b)'s contact information, but will try to get it from § 87(2)(b) She stated that § 87(2)(b)'s first name is § 87(2)(b)

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/20/2022
Remarks Called § 87(2)(b) at 1:58 p.m. at § 87(2)(b) -- § 87(2)(b) scheduled interview for this case and 202200755 on 07/21/2022 from 2:00 p.m. to 4:00 p.m.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/21/2022
Remarks Called § 87(2)(b) at 2:03 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM, VM box full, could not leave VM.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/21/2022
Remarks § 87(2)(b) called at 2:20 p.m. from § 87(2)(b) § 87(2)(b) stated that she was ready for her interview, then said that she could not hear my because my call volume was low. I tried to adjust settings, then told her I would call her back.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/21/2022
Remarks Called § 87(2)(b) at 2:21 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM, VM box full, could not leave VM.

Contact: Victim § 87(2)(b)
Created by: Katherine White on 07/21/2022

Remarks Called § 87(2)(b) at 2:25 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM, VM box full, could not leave VM.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 07/21/2022

Remarks Called § 87(2)(b) at 3:02 p.m. at § 87(2)(b) Phone rang, went to uncustomized VM, VM box full, could not leave VM.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/01/2022

Remarks Called § 87(2)(b) at 6:34 p.m. at § 87(2)(b) 1). Phone is out of service, calabrio did not record this call.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/01/2022

Remarks Called § 87(2)(b) at 6:34 p.m. at § 87(2)(b) (1). Phone rang, went to uncustomized VM, left please call VM.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/01/2022

Remarks Called § 87(2)(b) at 6:37 p.m. at § 87(2)(b) (1). Female caller stated that I had the wrong number.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/01/2022

Remarks Called § 87(2)(b) at 6:39 p.m. at § 87(2)(b) (1). Phone rang, went to customized VM for § 87(2)(b) left please call VM re: complaint.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/08/2022

Remarks Called § 87(2)(b) at 12:30 p.m. at § 87(2)(b) (2). Phone rang, went to uncustomized VM, left please call VM.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/08/2022

Remarks Called § 87(2)(b) at 12:31 p.m. at § 87(2)(b) (2). A female voice answered, stated that she did not know who § 87(2)(b) was.

Contact: Victim § 87(2)(b)

Created by: Katherine White on 08/08/2022

Remarks Received a call at 12:33 p.m. from § 87(2)(b) (3). Female caller stated that she was not § 87(2)(b)

Contact: Comp/Witness § 87(2)(b)

Created by: Katherine White on 09/30/2022

Remarks Called § 87(2)(b) at 12:21 p.m. at § 87(2)(b) Told § 87(2)(b) that we would be closing this case pending litigation; she asked about SOL since criminal case could take "three years." I told her lawyer wanted § 87(2)(b) to close pending litigation, and that his statement is necessary as he is part of the case and victim of fados; however, told her that if he does not want to participate, ca...

Letters/Correspondence IAs: 5

Document List:

1st please call to c/v/w letter to Comp/Witness § 87(2)(b) Created 03-15-2022 by Katherine White

1st please call to c/v/w letter to Comp/Witness § 87(2)(b) Created 04-13-2022 by Katherine White

1st please call to c/v/w letter to Victim § 87(2)(b) Created 04-13-2022 by Katherine White

C/v missed appt. letter to Victim § 87(2)(b) Created 07-07-2022 by Katherine White

C/v missed appt. letter to Victim § 87(2)(b) Created 07-28-2022 by Katherine White

Letters/Correspondence IA created by: Katherine White on 03/15/2022

Remarks Sent § 87(2)(b) 1st "first please call" letter via email to § 87(2)(b)

Letters/Correspondence IA created by: Katherine White on 04/13/2022
Remarks Sent 2nd "First Please Call" letter to § 87(2)(b) via email and post.

Letters/Correspondence IA created by: Katherine White on 04/13/2022
Remarks Sent § 87(2)(b) 1st "First please call" letter via email and post.

Letters/Correspondence IA created by: Katherine White on 07/07/2022
Remarks Sent § 87(2)(b) "c/v missed appt. letter" via post and email.

Letters/Correspondence IA created by: Katherine White on 07/28/2022
Remarks Sent § 87(2)(b) "civilian interview missed" letter for interview 07/21/22.

Civilian Interview Scheduled IAs: 11

Created by: Katherine White on 04/27/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 04/29/2022 at 11:00AM Interview Type: Telephone
Interview Location: Other

Created by: Katherine White on 07/05/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 07/07/2022 at 12:00PM Interview Type: Telephone
Interview Location: Other

Created by: Katherine White on 07/20/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 07/21/2022 at 02:00PM Interview Type: Telephone
Interview Location: Other

Created by: Katherine White on 08/08/2022
Remarks § 87(2)(g) On July 29, 2022, the following interview was scheduled: § 87(2)(b) is scheduled to be interviewed on 08/08/2022 at 11:00AM Interview Type: Video Interview Location: Other

Created by: Katherine White on 08/08/2022
Remarks § 87(2)(g) On August 1, 2022, the following interview was scheduled: § 87(2)(b) § 87(2)(b) is scheduled to be interviewed on 08/09/2022 at 09:00AM Interview Type: Video Interview Location: Rikers

Created by: Katherine White on 08/15/2022
Remarks § 87(2)(g) The following interview was scheduled 08/09/22: § 87(2)(b) is scheduled to be interviewed on 08/15/2022 at 09:00AM Interview Type: Video Interview Location: CCRB

Created by: Katherine White on 08/15/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 08/23/2022 at 09:00AM Interview Type: Video
Interview Location: Rikers

Created by: Katherine White on 08/15/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 08/23/2022 at 10:30AM Interview Type: Video
Interview Location: Rikers

Created by: Katherine White on 08/25/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 09/01/2022 at 09:00AM Interview Type: Video
Interview Location: Rikers

Created by: Katherine White on 08/25/2022
Remarks § 87(2)(b) is scheduled to be interviewed on 09/02/2022 at 09:00AM Interview Type: Video
Interview Location: Rikers

Created by: Katherine White on 09/20/2022
Remarks § 87(2)(g) The following interview was scheduled 09/13/22: § 87(2)(b) is scheduled to be interviewed on 09/20/2022 at 10:00AM Interview Type: Video Interview Location: Rikers

Civilian Interview Missed IAs: 2

Created by: Katherine White on 07/07/2022
Remarks On July 7, 2022, § 87(2)(b) failed to appear for a previously scheduled interview.

Created by: Katherine White on 07/21/2022
Remarks On July 21, 2022, § 87(2)(b) failed to appear for her previously scheduled interview.

Truncation Report Remarks:

On February 19, 2022, § 87(2)(b) reported this complaint to IAB over the phone, generating original log #22-03890. On March 7, 2022, the CCRB received this complaint. § 87(2)(b) made the complaint on behalf of herself and other family members and their partners – § 87(2)(b) and § 87(2)(b).

The investigation did not obtain video footage for this case. As of October 4, 2022, a request for BWC footage is still outstanding.

§ 87(2)(b) provided a statement to the CCRB. § 87(2)(b) declined to participate in this complaint. The investigation was unable to reach § 87(2)(b) after making the required searches and subsequent contact attempts. § 87(2)(b) missed two interviews § 87(2)(g).

On September 28, 2022, § 87(2)(b) attorney, § 87(2)(b), stated via email that § 87(2)(b) could not provide a statement until his criminal case is resolved.

§ 87(2)(g).

Squad No.: 5

Investigator:	<u>KW</u> Signature	<u>INV Katherine White</u> Print Title & Name	<u>10/3/2022</u> Date
Squad Leader:	<u>Laura Strauss</u> Signature	<u>SI Laura Strauss</u> Print Title & Name	<u>10/4/2022</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date